

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                    |                                                                  |                                     |                                                        |                                    |                                 |
|----------------------------------------------------|------------------------------------------------------------------|-------------------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Santosh Prakash                   | Team:<br>Squad #08                                               | CCRB Case #:<br>201707982           | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                    |                                                                  |                                     | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 09/20/2017 11:45 AM | Location of Incident:<br>St. Nicholas Avenue and W. 147th Street | 18 Mo. SOL<br>3/20/2019             | Precinct:<br>30                                        |                                    |                                 |
| Date/Time CV Reported<br>Wed, 09/27/2017 10:37 PM  | CV Reported At:<br>CCRB                                          | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Wed, 09/27/2017 10:37 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)         | Shield | TaxID  | Command |
|----------------------------|--------|--------|---------|
| 1. POM Eric Kim            | 17218  | 958761 | 030 PCT |
| 2. POF Fitzgeralda Sanchez | 28803  | 944167 | 030 PCT |

| Officer(s)                  | Allegation                                                                                         | Investigator Recommendation |
|-----------------------------|----------------------------------------------------------------------------------------------------|-----------------------------|
| A . POF Fitzgeralda Sanchez | Abuse: Police Officer Fitzgeralda Sanchez stopped the vehicle in which § 87(2)(b) was an occupant. | A . Substantiated           |
| B . POM Eric Kim            | Abuse: Police Officer Eric Kim stopped the vehicle in which § 87(2)(b) was an occupant.            | B . Substantiated           |

## Case Summary

On September 20, 2017, at approximately 11:45 am, § 87(2)(b) was pulled over at W. 147<sup>th</sup> Street and St. Nicholas Avenue by PO Fitzgeralda Sanchez and PO Eric Kim (30<sup>th</sup> Precinct), in regards to an ongoing investigation in the area. **(Allegations A, B: Abuse of Authority – Vehicle Stop: Substantiated)** Upon realizing that § 87(2)(b) was not their subject, the officers released him. No summons was issued. There was no video footage documenting the incident.

## Findings and Recommendations

**Allegation A: Police Officer Fitzgeralda Sanchez stopped the vehicle in which § 87(2)(b) was an occupant.**

**Allegation B: Police Officer Eric Kim stopped the vehicle in which § 87(2)(b) was an occupant.**

§ 87(2)(g)

§ 87(2)(b) is a taxi driver contracted to a business located at § 87(2)(b), where his girlfriend also works. On September 20, 2017, at about 9:00 am, § 87(2)(b) drove his girlfriend to work. Because he had no shifts that day, he was in his personal vehicle, a black SUV. But after dropping off his girlfriend, § 87(2)(b) remained at the location for the next two hours. He parked curbside on W. 149<sup>th</sup> Street, near a blue USPS mailbox there (see location photo below) and, for the next two hours, dealt with paperwork inside the car, stepping out occasionally to smoke a cigarette. § 87(2)(b) § 87(2)(b) black male with a slight beard, was wearing a yellow shirt and blue jeans that day. (BR01)



W. 149<sup>th</sup> Street & Amsterdam Avenue

At approximately 11:30 am, § 87(2)(b) finished and left the area, but only went a few blocks south before he was pulled over by PO Fitzgeralda Sanchez and PO Eric Kim at W. 147<sup>th</sup> Street and St. Nicholas Avenue. The officers initially told § 87(2)(b) that he was being stopped for a traffic infraction, without specifying what that was, obtained his driver's license, and went back to their car. A few minutes later, they returned to § 87(2)(b) and, after asking him about what he was doing in the area, said he was free to leave. When § 87(2)(b) inquired about the reason for the stop, PO Sanchez advised that there had been an anonymous report that someone was attempting to break into a USPS mailbox on W. 149<sup>th</sup> Street, and that the suspect was said to be wearing a yellow shirt. PO Sanchez provided no further information regarding what, if anything, the officers had seen him to do before the stop. (BR01)

PO Sanchez and PO Kim testified that the 30<sup>th</sup> Precinct had, since earlier that summer, seen an uptick in “mailbox fishing,” a robbery pattern they defined as the theft of mail from street-side USPS mailboxes. The officers knew very little regarding the pattern – the frequency and geographical spread of incidents, for example, or whether any suspects were wanted – and while they could not recall various details regarding the incident, they were consistent on the following chronology of events: 1.) at 11:26 am, Central Dispatch radioed that a 911 caller had reported someone mailbox fishing at W. 149<sup>th</sup> St. and Amsterdam Avenue; 2.) per Dispatch, the suspect was described as a bearded black male wearing a yellow shirt and khakis; 3.) the job was assigned to Sector C, but PO Sanchez and PO Kim, designated as Sector A1, responded to the location as backup. 4.) upon arrival – they were either the first ones there or the other unit was already canvassing – the officers found nothing near the mailbox on W. 149<sup>th</sup> Street – no complainant, no signs of theft and no one matching the suspect's description; 5.) they asked Dispatch to contact the 911 caller, and awaited further information – details regarding the suspect’s appearance or actions, direction of travel, etc., none of which had been relayed. The officers did not recall what Dispatch had said about the caller – whether or not they were anonymous, whether they were still at the scene, and whether they were willing to meet with the officers. (BR02-03)

As they waited for Dispatch to radio back, the officers scanned the surrounding area for suspects matching the reported description. Besides exiting the car briefly to inspect the mailbox, PO Sanchez did not recall if she undertook any specific investigative efforts. She did not speak with any business owners and, though people were walking about, did not recall approaching any pedestrians. But at some point during the wait, PO Sanchez happened to notice a black male wearing a yellow shirt – identified by the investigation as § 87(2)(b) – at the end of the block on her side of the street, walking southbound on the sidewalk. As she alerted PO Kim, § 87(2)(b) entered a car parked at W. 148<sup>th</sup> Street or W. 147<sup>th</sup> Street, prompting the officers to drive closer and get a better look. PO Sanchez stated that she wanted to see if there was anything else about § 87(2)(b) that matched the reported description, though she also felt at the time that a stop was already permissible without more information: while she had not noticed anything suspicious about him, § 87(2)(b) yellow shirt and proximity to the scene were sufficient cause in her opinion for further investigation. (BR02)

However, as the officers drove down Amsterdam Avenue towards § 87(2)(b) vehicle, § 87(2)(b) pulled away from the space at normal speed and drove off. The officers followed him for several blocks. PO Sanchez did not recall observing any traffic infractions or anything suggesting criminal activity as they tailed him, but jointly decided with PO Kim to effectuate the stop. Notifying Dispatch – which still had not relayed any relevant information (PO Sanchez did not recall if she knew whether call back attempts were ongoing or not) the officers stopped the car at St. Nicholas Avenue and W. 147<sup>th</sup> Street, where § 87(2)(b) pulled over promptly. They then engaged § 87(2)(b) who said he was coming from his nearby workplace, provided his documents, and did nothing that was furtive or evasive. Without questioning him any further, they returned to their car with the documents to run checks. It was ultimately around this time that Dispatch relayed that the 911 caller had refused to cooperate any further with police. (BR02)

PO Kim § 87(2)(g) added that he saw § 87(2)(b) facial hair – another factor of resemblance to the description – at the time of the initial observation on Amsterdam Avenue. Per PO Kim, after the officers had obtained § 87(2)(b) documents, Sector

C radioed that the job was being closed as unfounded, either because the complainant was anonymous or uncooperative. § 87(2)(b) was released with an explanation soon thereafter. The stop was about five minutes in duration. No other units responded. Prior to the stop, the officers did not recall any significant communications with Sector C. (BR03) The officers' memo books note that: they received the first transmission from Dispatch at 11:26 am, stopped § 87(2)(b) car at 11:39 am, and received Sector C's transmission at 11:45 am. (BR04-05) The UF-250 prepared was consistent with the above. (BR14)

The initiating 911 call consists of the following conversation. The caller states that a black male wearing a yellow shirt is "fiddling around with a mailbox" at the corner of W. 149th Street and Amsterdam Avenue, as if to get inside of it. The caller states that the male has a beard and that he is carrying "some kind of bag...or home-made contraption" to get inside the mailbox. The caller provides no further information regarding what or who he has observed. When the operator requests his name and phone number, the caller responds "anonymous." The investigation did not find documentation of any subsequent contact with the caller. (BR06-07)

The event documents and police radio communications record the following. At 11:26 am, Central Dispatch transmits the job as "male black wearing a yellow jacket trying to get into a mailbox." Between 11:31 and 11:32, Sector A2, Sector C, and Sector A1 arrive on scene in that order. Approximately 8 minutes later, Sector A2 closes the job as unfounded. After an inaudible transmission by Sector A1 (only the words "call back" are discernible), Dispatch announces the report again, stating "male caller passerby wants to be anonymous - male black wearing a yellow shirt has a beard - looks like he's trying to get into the mailbox." In response, Sector A1 responds that they completed a stop in regards – but that they "don't know who's got the final." Less than a minute later, at 11:44 pm, Sector C confirms the job's final disposition as unfounded. Sector A1 then clarifies that their stop was conducted at W. 147th Street and St. Nicholas Avenue. (BR08-10)

The police may stop a vehicle when there is "at least a reasonable suspicion that the driver or occupants have committed, are committing, or are about to commit a crime," or when there is probable cause to believe that the driver has committed a traffic violation. (People v Robinson, 122 AD3d 1282 [4th Dept 2014]; BR11)

Reasonable suspicion may not be based on a vague or un-particularized hunch. Vague or generic descriptions of a suspect which could apply to numerous individuals cannot form the basis of reasonable suspicion. (People v. DeBour, 40 N.Y.2d 210 [1976]); BR12)

As uncorroborated hearsay, an anonymous 911 call can only give reasonable suspicion when the tipster's veracity and basis of knowledge are verifiable. The tip must be descriptively specific to a determinate individual and an officer "must obtain additional information or make additional observations of suspicious conduct sufficient to provide reasonable suspicion of criminal behavior" to conduct a stop. (People v. Moore, 6 N.Y.3d 496, citing Florida v J. L., 529 U.S. 266; BR13)

§ 87(2)(g)

[illegible]

It is therefore recommended that

### **Civilian and Officer CCRB Histories**

- § 87(2)(b) filed one prior complaint (§ 87(2)(b)).
- PO Sanchez has been a member of service for 11 years. She was a subject in 4 prior cases, on 7 allegations, 2 of which were substantiated (201311559: Abuse – Other, CCRB Disposition – Command Discipline B, NYPD Penalty – Command Discipline B; Abuse – Stop, CCRB Disposition – Command Discipline B, NYPD Penalty – Command Discipline B).
- PO Kim has been a member of service for 2 years. He has no prior complaints.

## Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. Notice of claim results are pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 08

Investigator: \_\_\_\_\_

Signature \_\_\_\_\_ Print Title & Name \_\_\_\_\_ Date \_\_\_\_\_

Squad Leader: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|